

File No.: EXP202206310

RESOLUTION ON THE ARCHIVING OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following:

FACTS

FIRST: On May 6, 2022, a complaint was filed with the Spanish Agency for Data Protection against CAIXABANK, S.A. with NIF A08663619 (hereinafter, the respondent).

The reasons for the complaint are as follows:

On January 19 and February 1, 2022, two bank transfers were made from the complainant's account at UNICAJA BANCO, S.A. to the account of their son (an account opened at the respondent CAIXABANK, S.A.), allowing the recipient to view numerous personal data of the sender (the complainant), such as the postal address and the NIF. The complainant states that after contacting their bank, it indicated that the error did not originate from the aforementioned entity, which is why they filed a complaint against the respondent on May 3, 2022.

The complainant provides documentation related to the two transfers made and the data contained therein (which bears the stamp of the respondent, dated April 29, 2022). They also provide a copy of a resolution issued by this Agency regarding a previous complaint, but against the ordering entity UNICAJA BANCO, S.A., which was inadmissible due to the lack of reasonable indications of an infringement, all based on the allegations made by the aforementioned entity, indicating that: "The document provided by the complainant containing their postal address and NIF was not generated in the systems of UNICAJA BANCO, nor was it prepared or sent by the entity."

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on June 7, 2022, as evidenced by the acknowledgment of receipt in the file.

On July 5, 2022, a response was received by this Agency indicating the following:

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- That the transfers made by the complainant are carried out under the SEPA interbank regulations (Single Euro Payments Area), which aims to establish payment instruments, infrastructures, and uniform pan-European standards throughout Europe.
- That, in Spain, the operational rules of the transfer scheme are included in the interbank file 34.14.
- That SEPA mandates follow a standardized procedure common to all credit institutions.
- That, as specified in the Interbank File 34.14, "The data provided by the sender for the beneficiary will be transmitted in full until it reaches the beneficiary, as long as it is possible."
- That, "Therefore, this information is displayed by CaixaBank to the beneficiary of the transfer because it is sent by the issuing entity, in accordance with the interbank regulations that apply the SEPA regulations."

THIRD: On August 6, 2022, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

FOURTH: The General Subdirectorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII,

Chapter I, Section two, of the LOPDGDD, being aware of the following aspects:

On April 17, 2023, it was confirmed on the website of the Spanish Confederation of Savings Banks (CECA), <https://www.eca.es/sepa/>, that "Through the European Payments Council (EPC), these SEPA instruments have been defined for transfers and direct debits, along with a set of rules and standards in ISO 20022 format that must be respected by the parties involved.

For this purpose, the SEPA files of the series of banking rules and procedures are defined, which allow the issuance of SEPA transfers or direct debits in accordance with the applicable European regulations."

On this website, the Orders file in ISO 20022 format for the issuance of transfers and euro checks can be downloaded. Implementation guide (November 2019). The file establishes that:

"This implementation guide and the messages in ISO 20022 format detailed have been defined by Spanish credit institutions through their respective associations, Spanish Banking Association (AEB), Spanish Confederation of Savings Banks (CECA), and National Union of Credit Cooperatives (UNACC).

It is, therefore, a standardized guide common to all those credit institutions that provide the services referred to in this guide."

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[...]

"The data provided by the remitter for the beneficiary will be transmitted in full until it reaches the beneficiary, as long as it is possible. Due to technical limitations of interbank formats, it is possible that the remitting entity may not be able to send the complete information provided to the beneficiary's entity."

LEGAL GROUNDS

I

Competence

In accordance with the functions assigned to each supervisory authority by Article 57.1 a), f), and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Data Protection Agency is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Security of Processing

Article 32 of the GDPR stipulates the following:

"1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying likelihood and severity for the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which may include, among others:

- a) the pseudonymization and encryption of personal data;
- b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services;
- c) the ability to restore the availability and access to personal data quickly in the event of a physical or technical incident;
- d) a process for regularly testing, assessing, and evaluating the effectiveness of technical and

organizational measures to ensure the security of processing.

2. In assessing the appropriateness of the level of security, particular consideration shall be given to the risks presented by the processing of data, in particular as a result of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

3. Adherence to an approved code of conduct pursuant to Article 40 or to an approved certification mechanism pursuant to Article 42 may serve as an element to demonstrate compliance with the requirements set out in paragraph 1 of this article.

4. The controller and the processor shall take measures to ensure that any person acting under the authority of the controller or the processor and having access to personal data only processes such data on instructions from the controller, unless required to do so by Union or Member State law.”

III

Principles Relating to Processing

Letter c) of Article 5.1 of the GDPR advocates:

“1. Personal data shall be:

(...)

c) adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed (‘data minimization’);”

IV

Conclusion

The complaint presented originates from the exposure of personal data of the remitter of a bank transfer to the recipient of the same. It has been confirmed that transfers made under the SEPA interbank regulation follow a standardized procedure common to all credit institutions.

In the document specifying the Orders in ISO 20022 format for issuing transfers and checks in euros, it is established that: “The data provided by the remitter for the beneficiary will be transmitted in full until it reaches the beneficiary, as long as it is possible.”

The party being complained against has claimed that the information is shown to the beneficiary of the transfer because it is sent by the issuing entity, in accordance with the interbank regulation that applies the SEPA regulation.

Therefore, based on the indications in the previous paragraphs, no evidence has been found to substantiate the existence of an infringement within the jurisdiction of the Spanish Data Protection Agency.

In accordance with the above, the Director of the Spanish Data Protection Agency RESOLVES:

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FIRST: TO PROCEED WITH THE FILING of the present proceedings.

SECOND: TO NOTIFY this resolution to CAIXABANK, S.A. and to the claiming party.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided for in Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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